
Review: Emergencies, Executive Power, and the Uncertain Future of US Presidential Democracy

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Review by: William E. Scheuerman

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Emergencies, Executive Power, and the Uncertain Future of US Presidential Democracy

William E. Scheuerman

- ACKERMAN, BRUCE. 2010. *The Decline and Fall of the American Republic*. Cambridge, MA: Harvard University Press. Pp. 270. \$25.95 cloth.
- FATOVIC, CLEMENT. 2009. *Outside the Law: Emergency and Executive Power*. Baltimore, MD: Johns Hopkins University Press. Pp. viii + 352. \$55.00 cloth.
- POSNER, ERIC A., and ADRIAN VERMEULE. 2010. *The Executive Unbound: After the Madisonian Republic*. New York: Oxford University Press. Pp. 249. \$29.95 cloth.
- SHANE, PETER M. 2009. *Madison's Nightmare: How Executive Power Threatens American Democracy*. Chicago, IL: University of Chicago Press. Pp. xi + 245. \$27.00 cloth.

This article reexamines the question of how best to restrain executive power in a political and social context that seems to favor its dramatic expansion. Modern interventionist government amidst a dynamic social environment, where the executive faces a seemingly endless series of "crises" or "emergencies," provides a heightened scope for executive discretion. At the same time, the US-style separation of powers, in which an independent president faces a potentially obstinate Congress, offers executives many incentives to exploit crises, real or otherwise. The works examined in this article confront, with varying degrees of success, the seemingly inexorable expansion of executive power within the US version of liberal democracy. We can only hope to deal with the many intellectual and political tasks posed by the symbiotic nexus between executive-centered and crisis-oriented government by confronting some tough questions about US constitutional design and the possibility of radical institutional reform. Unfortunately, even those scholars who provide plausible accounts of the US system's fragilities seem hesitant to do so.

September 11, Hurricane Katrina, and the 2008 global financial emergency: each crisis took an unexpected and arguably unprecedented form. Each also rapidly generated a dramatic augmentation of executive discretionary power. Dire threats to collective well-being now seem to be occurring at a dizzying rate. Of course, the last century witnessed a series of major political and economic crises (e.g., the World Wars, the Great Depression, the Cold War). The massive growth of both the executive and administrative states during the twentieth century was fueled in part by them. The last decade suggests not only that we can expect much of the same in the new century, but also that the pace at which major crises happen is probably undergoing intensification.¹

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1. Elsewhere I have described this process as "social acceleration," a term meant to capture the increasingly high-speed temporality of major social and economic processes (Scheuerman 2004). Recent

It may be premature to describe ours as an era of “permanent emergencies,” but the general tendencies seem alarming enough. To the extent that crisis government typically works to strengthen executive power, its proliferation raises tough questions. How can we circumvent its dangers? Can the rule of law and separation of powers still achieve what many of us have traditionally sought from them?² Or should we expect an even more unchecked executive outfitted with novel prerogative powers?

The impressive collection of books under discussion here confronts these questions head-on. Not surprisingly, most of them are motivated in part by former President George W. Bush, whose administration responded to 9/11, Katrina, and the 2008 financial crisis with “one of the most aggressive presidential assertions of power in U.S. history” (Kleinerman 2009, 1). To their credit, however, their authors rightly grasp that much more is at stake than ordinary partisan politics or the demerits of President Bush’s extreme views about executive power. They tend to interpret his policies as the culmination of a long-term expansion of discretionary executive power that poses fundamental challenges to many traditional legal aspirations. The emergence of what appears to be an increasingly executive-dominated political apparatus in which executive prerogative too often trumps conventional legislative rule making and judicial oversight, and where legislatures and courts often play second fiddle, potentially undermines praiseworthy liberal democratic political and legal ideals.³ The authors all try to suggest creative ways in which we might better grapple with the ongoing institutional changes.

What sets them apart from earlier and typically more partisan tracts is not only an admirable attempt to underscore long-term institutional trends, but also the sensible underlying insight that many of the issues raised so vividly by President Bush’s extreme positions will continue to bedevil US liberal democracy. Penned for the most part just as Bush was handing over the reins to his Democratic successor, and thus unavoidably having little to say about the particulars of President Obama’s policies, on this score they have proven prescient: Obama has modified but by no means altogether abrogated the second Bush administration’s positions on executive power. Institutional continuities (e.g., continued reliance on indefinite detention and military tribunals) seem at least as striking as some notable discontinuities (e.g., the open repudiation of torture) (Desch 2010).

Of course, the president now faces powerful opposition from a resurgent conservative majority in the House of Representatives. As his disappointed supporters have quickly discovered, President Obama is no (elected) monarch with unlimited legal authority, in part because the strict US-style separation of powers outfits Congress and

events—and especially 9/11—have generated a massive outpouring of literature on emergency government. For a theoretical defense of the Bush administration’s views, see Yoo (2005); for a critique, see Cole and Lobel (2007). For more general theoretical reflections on the problems posed by emergency rule, see Gross and Ni Aolain (2006), Lazar (2009), Levinson (2006a), Posner and Vermeule (2007), and Tushnet (2005); for some constructive ideas about how legal practice might better grapple with the challenge of emergency government, see Ackerman (2006), Dyzenhaus (2006), and Gross and Ni Aolain (2006). For a political theory perspective, see Honig (2009); a useful perspective on the US debate from abroad is provided by Frankenberg (2010).

2. For competing ideas about the rule of law (whose variations would take us well beyond the scope of this article), see Tamanaha (2004); for useful discussions of the separation of powers, see Casper (1997) and Vile (1998).

3. For a very useful recent survey of the trends, see Rudalevige (2005).

the Supreme Court with independent political and institutional supports from which they can push back, even against popular presidents. Yet, significantly, even this familiar attribute of the US system aggrandizes potentially troublesome facets of executive power. Faced with strong opposition in Congress or the Supreme Court, politically harried executives who need to “get things done” before the next election cycle kicks off have to play their best institutional cards. Especially in presidential systems like our own, executives possess political incentives to claim far-reaching authority when it is most likely to their advantage. And nothing works better to galvanize popular support for the executive—as well as to force recalcitrant institutional rivals into line—than a serious crisis or emergency, real or otherwise. As an ominous yet illuminating German political homily goes, “The emergency is the hour of the executive.”

Unfortunately, the results hardly coalesce with the standard textbook accounts of our political system. While struggling—often effectively—to wrest control of the administrative apparatus from Congress, presidents rely on incessant talk of crises and wars (e.g., the “war on terror,” or even the ill-fated “war on drugs” or “war on poverty”) to mobilize popular opinion and gain the institutional upper hand. Even our otherwise powerful courts tend to defer when faced with broad claims about executive discretion in foreign affairs. And in our globalizing age, can anyone clearly disentangle the “foreign” from the “domestic”? Unfortunately, executive-dominated crisis government bodes poorly for the rule of law and separation of powers. Now widely perceived as the most direct (plebiscitary) expression of the popular will, and thus that political actor whom most Americans hold primarily responsible if things go badly in any of a vast range of policy arenas, the president faces institutional vulnerabilities that may encourage him to pursue policies that expand his discretionary power while undermining legality (Linz 1994; Ackerman 2000; Arato 2002; Scheuerman 2008). To be sure, other advanced liberal democracies (and nondemocracies, as well) depend on extensive discretionary administrative and executive decision making (Carolan 2009), yet US-style presidential government—a rather distinct variety of liberal democracy, which typically has not flourished elsewhere—gives the seemingly universal growth of executive power a very special flavor.

Although broadly in agreement that ours increasingly is a political system in which the executive tends to predominate, the authors discussed here all disagree not only about the nature of the underlying forces motoring the expansion of executive power, but also about what to do about them. Least convincingly, some of them argue that the best antidote would be a revitalization of the (allegedly) neglected ideas of the US constitutional framers. For those of us worried about recent institutional trends, they offer a deceptively appealing brand of constitutional nostalgia, according to which we can counter the growth of executive government by adapting the framers’ time-tested insights to contemporary conditions. I reject this position not only because it misdiagnoses the problems we face today, but also because it occasionally risks succumbing to the “blind worship” of the US constitutional framers that justifiably worried Woodrow Wilson and so many other critical observers.

Other commentators rightly abandon constitutional nostalgia, but only at the price of embracing a disturbingly quiescent interpretation of executive-dominated government. They discount altogether the possibility of checking executive power by familiar legal and constitutional means, instead pointing to (supposedly overlooked)

independent *political* mechanisms as offering possible restraints. In their view, these political checks on the executive are unrelated to liberal legalism, which they consider fundamentally anachronistic. Yet this approach throws the baby out with the bathwater: not just the Madisonian separation of powers, but liberal legalism in toto, is discarded. Joining arms with Carl Schmitt, twentieth-century Germany's most important right-wing authoritarian jurist, they never free themselves from his grip. Because they never succeed in proving that the political instruments they make so much of can do the job properly, they underestimate the resulting perils.

The most fruitful theoretical path entails *both* rejecting constitutional nostalgia *and* taking the dangers of legally unchecked executive power seriously. Unfortunately, this position ends up providing little more than meager bandages covering over major deficits. Its cautious reformism meshes badly with its far-reaching critique of existing US institutions. In part, this weakness stems from a lacuna plaguing most of the US literature on executive power: too many writers seem hesitant to consider even the remote possibility of far-reaching reform potentially inspired by political and constitutional models from abroad. Such skepticism is understandable given the present-day US political climate and the US constitutional system's astonishing rigidity (e.g., Article V's strict limits on formal constitutional amendment, or the seeming impossibility of fundamentally altering the undemocratic US Senate). However, it tends to preclude the kind of free-wheeling debate about constitutional and political institutions Americans now desperately need.

I. BACK TO THE FRAMERS: EXTRA-LEGAL EMERGENCY GOVERNMENT

In *Outside the Law: Emergency and Executive Power*, the political theorist Clement Fatovic has provided a learned historical and theoretical contribution to what is now widely described as the "extra-legal" approach to executive emergency power, whose most prominent defender is Oren Gross (2003). This approach synthesizes John Locke's influential view of prerogative power as external to ordinary law with profound skepticism about the capacity of the law to guide the executive during a crisis. In the face of dire emergencies, defenders of the extra-legal model argue, the executive often needs to pursue measures external to existing legal rules: existing law often fails to predict or anticipate what executives need to do. Yet the executive should nonetheless be required to take action openly and publicly, transparently underlining the harsh reality that his or her actions lack a legal basis. Since executive crisis action cannot be neatly cabined within the law, it is best that officials stop pretending otherwise. Such transparency, they believe, can help guarantee accountability.

In this view, the commonplace refusal to acknowledge the necessary extra-legality of emergency action leads to a conflation of ordinary and emergency law, potentially threatens basic civil liberties, and sets off a downward cycle in which the ordinary rule of law is polluted by discretionary emergency law. The optimal way to preserve legality is by neatly cordoning off extra-legal emergency action and then subjecting extra-legal executive acts to strict scrutiny. Executives should be ready to face criminal or civil charges in court, resignation, impeachment, or defeat in an upcoming election. Tough

publicity requirements and an ex post facto judgment by the public (exercising oversight via a range of familiar institutional mechanisms) can properly check the executive. If a president can only act knowing that he or she can claim no legal basis for his or her actions and risks severe retrospective political or legal censure, he or she supposedly will avoid unnecessary or repressive action.

The extra-legal model has already generated a lively debate (Ramraj 2008).⁴ Fatovic's original contribution is to show how a conceptually powerful version of this model was first formulated by early modern political and legal thinkers such as Locke, Blackstone, and, most importantly, the Federalists, whose neglected insights allegedly allow us to better understand how it might potentially succeed. In his view, the US founders ultimately got the extra-legal model right. They built on Locke and others, but alone put the pieces of the extra-legal puzzle together properly. Consequently, we can revisit their legacy in order to reform contemporary practice. Primarily a meticulously documented and well-researched work on the history of legal and political ideas, Fatovic's book is also partly intended as a contribution to contemporary debates. Unfortunately, its quick transition from the history of political ideas to present-day institutional diagnosis leaves too many questions unanswered.

As for others in the extra-legal camp, one of Fatovic's main targets is the supposedly overstated "legalistic" idea that emergencies and crises can be effectively anticipated by legal rules. Apparently, any attempt to subject executive emergencies to strict legal regulation not only obscures the contingent and unexpected nature of most crises, but also does a terrible disservice to the rule of law. This thesis leads him to criticize two recent trends, both of which he pictures as having contributed to the pathologies of contemporary executive-centered crisis government. First, he is skeptical of broad presidential assertions of inherent constitutionally or legally-based emergency powers, along the lines advanced in drastic versions by John Yoo and other Bush administration lawyers (2005). The Bush administration's excesses should remind us that early liberal theorists were right "that explicit grants of formal power [during a crisis] open it up to corruption and abuse" (2009, 6). However, the threat at hand is not simply the executive's tendency to provide a deceptive legal or constitutional veneer for many dubious and even repressive acts. Perhaps even more troublesome are the legislature's supposedly overeager attempts to create legal frameworks for crisis or emergency government. A panicky Congress typically responds to crises by crafting legislation (e.g., the Patriot Act) that is "either over-inclusive or under-inclusive, indeterminate, indiscriminate, or unenforceable" (2009, 263). Crisis law making leaves us with lousy delegations of power to the executive that simply "accustom the public to the exercise of unprecedented powers, create dangerous consolidations of power, or provide a fig leaf that conceals a shameful and unwarranted infringement of individual liberties" (2009, 263). Sound general rules of law tend to be supplanted by exceptional executive measures, which instead should have been quarantined from the legal system's everyday operations.

Fortunately for those of us residing in the United States, Fatovic reassures us, the founders knew better. Since recent institutional pathologies can be traced to the

4. With some minor qualifications, Benjamin Kleinerman's (2009) recent book on the US presidency can also be placed in this category, as well. His exemplar, however, is Abraham Lincoln.

abandonment of their sage lessons, he seems to suggest, we should perhaps revitalize their legacy. Not only did they aptly condone the extra-legal character of emergency government, but they also devoted their intellectual energies to designing institutions likely to produce an executive capable of responsibly exercising discretionary authority. Fatovic highlights the ways in which Hamilton and Madison not only envisioned the presidency as a main institutional site for “republican virtue,” but also creatively designed the office so as to help make sure that those who gained it would possess the requisite traits. Its institutional nuts and bolts were thus set up with the aim of cultivating holders who would prove patriotic, public-minded, committed above all to the common good (and thus capable of rising above narrow partisan or sectional interests), and able to favor long-term over short-term political interests. In part because the framers recognized not only the inevitability of discretionary emergency power, but also the fact that its exercise was necessarily “personalized and resistant to institutional formalization,” they sought to guarantee that those persons who gained it would have the right sort of moral and political virtues (2009, 210). Even if “virtue of the president would not replace institutional constraints” altogether, the founders still left a key place for an executive who was supposed to possess just those virtues we should expect from rulers having substantial extra-legal power (2009, 210).⁵

Many readers will likely worry about Fatovic’s interpretation of the framers, in particular, and early modern liberalism, in general. Most immediately, a strong case can be made that the original US constitutional settlement in fact *discarded* the basically Lockean idea of an extra-legal prerogative.⁶ From our perspective here, more problematic is Fatovic’s attempted contemporary revitalization of the founders’ ideas. Interpreting Obama’s 2008 election in part on the basis of his bipartisan appeal and promise to transcend “politics as usual” as offering some recent evidence of a “partial restoration of republican ideals of virtue,” he is heartened by the fact that the contemporary electorate apparently pays attention to republican ideals (2009, 267–70). Yet he still seems rather insensitive to the difficulties and dangers of replicating the original Federalist vision in the context of a modern pluralistic and democratic polity. As he sometimes concedes, the framers’ ideas of virtue were predicated on widely shared natural law notions as expressly endorsed in their political philosophies (2009, 259–60). What Max Weber famously described as modern “disenchantment,” however, arguably means that we can no longer rely on an equally far-reaching set of shared moral and normative understandings. Not surprisingly, when President Bush appealed to patriotism, he arguably had something very different in mind than those on the other side of the partisan divide.

Not only those political leaders with whom Fatovic seems to identify (e.g., Obama), but those whose excesses worry him deeply (e.g., Bush), regularly make rhetorical appeals hearkening back to traditional ideas of patriotism and the public good. Since the language of civic republicanism (e.g., appeals to the common good, or to “look beyond party”) seems ubiquitous in US politics, it provides at best a limited guide for determining which executives are deserving of popular trust. The fact that ours

5. For another recent defense of the centrality of presidential character to the successful employment of extra-legal emergency power, see Farber (2003, 196–200).

6. Again, the literature is massive, but for a recent restatement of this counterthesis, see Genovese (2011).

is a media-saturated (and also corporate-dominated) political universe, where politicians manufacture their images in ways that would have stunned our eighteenth-century predecessors, hardly makes things any easier for the ordinary voter. In the context of socially and politically divided societies, traditional republican rhetoric, or what the late feminist theorist Iris Marion Young once described as the idea of an “impartial civic public,” also potentially suppresses legitimate forms of political and social conflict (1990, 96–120).

In fairness, Fatovic seems cognizant of some of these issues. Nonetheless, he is insufficiently troubled by the anachronistic and potentially undemocratic nature of his constructive agenda. The founders, as we know, were hardly friends of modern mass democracy. Not insignificantly, many of the institutional mechanisms Fatovic effectively describes as constitutive of the Federalist presidency (e.g., the original version of the electoral college) clash with modern democracy. Revealingly, he blames the rise of modern political parties for destructive changes in “the way voters evaluate the character of the president” (2009, 265). Yet political parties constitute one of modern liberal democracy’s fundaments. Despite his own relatively progressive political inclinations, he worries about modern ideas of equality: “It is not easy to square the notion of virtue with equality because any meaningful conception of virtue necessarily implies substantive differences—hence inequalities—among individuals” (2009, 274). Rather than generating the appropriate anxieties about the Federalist vision, or providing a starting point for explaining how it might be updated so as to cohere with our more modern democratic commitments, Fatovic endorses the normatively and empirically dubious conclusion that egalitarian sensibilities “hinder democratic peoples from appreciating—let alone rewarding—intellectual or moral greatness” (2009, 274).

Even if we accept the exegetically controversial claim that the founders in fact endorsed the extra-legal model of emergency government, they still sought a *limited* government and did not anticipate the modern interventionist state, where the executive is typically expected to act expeditiously in response to a vast range of security, economic, and natural crises. Under contemporary conditions, where the executive increasingly seems to function as a more-or-less permanent crisis manager, the extra-legal model potentially provides a disturbingly easy justification for executives continually—and perhaps permanently—to abrogate normal legal mechanisms. Despite what its proponents claim, it is likely to bury the rule of law rather than save it.

Frustrated by how competing formal-legal and institutional explanations for the growth of executive power unduly downplay the central place of character and virtue, Fatovic occasionally seems to discount such alternative approaches altogether (2009, 8). Consequently, he never entertains the possibility that at least some of the pathologies he describes may be related to a *specific* institutional complex, namely, a somewhat unusual (US) brand of liberal democracy that has been subjected to many devastating criticisms (Lazare 1996; Levinson 2006b; Sabato 2007). The fact that “legal” approaches to executive emergency power allegedly have failed in the United States, in short, supposedly constitutes *prima facie* evidence that *any* attempt at legalizing such power (e.g., via constitutional emergency power clauses) *must* fail. This position precludes any consideration of alternative constitutional systems and their various attempts—some potentially more successful (Ackerman 2006)—at tackling the challenge of emergency powers. He could have devoted more attention to the possibility

that the distinctly US *presidentialist* separation of powers (in contrast, e.g., to competing parliamentary renditions)—where the executive is prone to dress up even ordinary political challenges in crisis language in order to gain sway over the administrative apparatus and face down institutional rivals—helps generate or at least aggrandize familiar features of executive-dominated crisis government (Linz 1994; Ackerman 2000; Scheuerman 2008).

II. JAMES MADISON FOR THE TWENTY-FIRST CENTURY

To his credit, Peter Shane's vividly written *Madison's Nightmare: How Executive Power Threatens American Democracy* refuses to endorse the extra-legal approach to executive emergency power, while also offering a plausible explanation for the recent growth of executive prerogative. Like Fatovic, Shane worries about the potential excesses of a cramped legal formalism, defending instead what he describes as an "institutionalist" model of the rule of law relying on Madisonian checks and balances to help guarantee legal accountability and the preservation of civil liberties. But he still succumbs to constitutional nostalgia: his antidote for "aggressive presidentialism" is an updated version of the time-tested Madisonian separation of powers. When push comes to shove, his programmatic appeal to the framers proves just as problematic as Fatovic's. Though Shane has some thoughtful ideas about how we might check recent institutional trends, his occasional nostalgia keeps him from properly defending them.

Shane sees our political system as now dominated by a "virtually unchecked presidency" facing a feckless Congress and unduly deferential courts (2009, vii). Though defenders of a strong presidency have long come from both sides of the political aisle, beginning in the early 1980s many political conservatives began to advance an extreme interpretation of executive power, envisioning the presidency as properly possessing vast authority largely unregulated by Congress or the judiciary. Complex legal theories of the "unitary executive," picturing the "President as constitutionally in charge of the exercise of *any and all* discretion that Congress vests in any officer of the executive branch, including policy discretion," played an important role in advancing this agenda (2009, 34). The unitary executive, Shane warns, risks transforming the massive apparatus of the modern administrative state into the president's plaything. At the same time, he sees the Republican Party as having become more ideologically and political coherent, driven to an increasing extent by the "voting preferences of its ideological base" (2009, 22).

According to Shane, the second Bush presidency represented a perfect storm in which these two trends came together. Even though his broad view of executive power built on constitutional arguments made by predecessors from both parties, President Bush consistently took matters a step further, radicalizing even their most immoderate legal claims.⁷ At the same time, an ever more consistently conservative Republican

7. Previous executives have claimed far-reaching wartime powers, of course. However, only President Bush asserted an executive prerogative to indefinitely detain—and, according to his sole determination, also subject to "heightened" interrogation (otherwise pretty much universally considered to be torture)—suspected terrorists. No previous US president has entertained a claim as far-reaching as this one. The now familiar tragedy has been well documented by Danner (2004).

Party saw a strong presidency as the perfect institutional vehicle for pursuing its ideological aspirations. In the context of foreign policy, this typically meant outfitting the executive with far-reaching unilateral authority. On the domestic front, it entailed making sure that the administrative and regulatory state would be calibrated in accordance with conservative—and especially market-oriented—policy preferences. For example, Reagan—and both Bushes—pushed hard to make regulatory activity subject to strict “cost-benefit” tests. Although at first glance this appears paradoxical given conservative hostility to “big government,” Shane argues that the overall strategy in fact made perfect sense. With conservatives pretty much in control of the presidency and Democrats maintaining a foothold in Congress, how better to rein in the “out-of-control” regulatory apparatus (staffed by career bureaucrats generally sympathetic to government regulation) than by insisting that it be directly subjected to the executive? As Shane concedes, “historically contingent institutional factors” undeniably motivated the recent conservative love affair with a strong presidency, but their impact has proven far-reaching nonetheless (2009, 22).

The specter of “Madison’s nightmare”—that is, an overweening executive branch made possible by the destruction of institutional checks and balances—has haunted US politics since 1981. But only recently has the terrible dream pretty much come true. Partisan political groups—in Shane’s view, exactly what Madison had in mind when he worried about factions—have successfully joined arms with proponents of broad presidential power, a number of whom advised President Bush. As Shane astutely points out, the successful operation of the formal institutional mechanisms established by the US constitutional framers always depended on far-reaching “[n]orms or habits of institutional cooperation,” which oiled an often clumsy and inefficient political apparatus (2009, 10). Checks and balances rest on institutional mechanisms *as well as* compromise-oriented mores and habits. Perhaps most consequential has been what Shane clearly considers to be growing partisan hostility to such norms, for example, in the Republican Party’s recent efforts to stymie President Obama. Institutional mechanisms (e.g., the filibuster) have played a pivotal role in this process. Yet behind the institutional gridlock lurks a broader breakdown of a political and constitutional culture that once encouraged cooperation and even compromise.

Shane is quite effective not only in taking on defenders of the unitary executive, but also at chronicling the disturbing extent to which contemporary US institutional reality already accords with their agenda, whose fruition, he convincingly argues, would entail a semiauthoritarian rendition of presidential government. Unitary executive theory misinterprets core features of the US constitutional tradition and dangerously radicalizes ideas about the strong presidency advanced in previous historical periods (2009, 32–42). National security has provided the most obvious arena where executive prerogative has been allowed to expand, but even those domestic agencies potentially immune from it have been transformed to an alarming degree into the president’s “personal bureaucracy,” subject to a “decider model” of executive oversight allowing the president to basically dictate policy (2009, 144). The unholy alliance of partisan conservative politics and aggressive presidentialism has politicized executive branch lawyers (e.g., in the Office of Legal Counsel [OLC]) in ways that make a mockery of sound jurisprudence.

For Shane, these trends not only pose serious threats to traditional US ideas about the separation of powers and the rule of law, but tend to generate shoddy policy outcomes as well. The ascent of presidential government means that key decision making is conducted by small and homogeneous groups located in the executive branch. Yet research in cognitive psychology shows that precisely such groups are most vulnerable to irrational and even pathological forms of “group think” (2009, 76–77). Predictably, our emerging presidentialist system of government is more error prone—Shane mentions the mishandling of both the Iraq invasion and Hurricane Katrina—than the previous Madisonian system of checks and balances, which for him represents the “special genius of the American Constitution” (2009, 9).

Offering little more than passing references to the fact that the steady accretion of executive power obviously predates 1981,⁸ Shane’s book is somewhat less satisfactory when it comes to confronting the broader historical and social sources of presidential government. Shane does not take into account the myriad *social* sources of modern executive discretion, including the extent to which increasingly fast-moving economic and social developments disable slow-moving elected legislatures and typically favor the (purportedly) rapid-fire executive branch (Scheuerman 2004). Even if he is right to worry about legal theories of the unitary executive and our increasingly partisan political and constitutional culture, the problem with his argument is that US-style “aggressive presidentialism” has roots going back a century or more, and that they may be even more tenacious—and bipartisan—than he generally acknowledges.

The dangers of a government forced to tackle a barrage of complex and fast-moving crisis situations have perhaps been aggrandized by theories of the unitary executive and a resurgent political conservatism, but they hardly can be traced to recent developments. Not coincidentally, Shane’s own anxieties sometimes mirror those of sophisticated mid-century analysts—most prominently, the political scientist Clinton Rossiter, author of the masterful *Constitutional Dictatorship: Crisis Government in the Modern Democracies* (2002), who worried about the rapid expansion of executive power under Franklin D. Roosevelt. Even his understandable annoyance with the apparent collapse of compromise-oriented mores reproduces that of mid-century conservatives who, for example, plausibly argued that Roosevelt’s decision to run for an unprecedented third (and then fourth) term represented a frontal attack on long-standing constitutional practice. It may be true that for a brief postwar “golden age” following World War II, informal norms productively supplemented formal institutional checks and balances, but that should not lead us to ignore the fact that they have been challenged—and violated—by key political players at crucial junctures in US history.

This lacuna is sure to surprise many scholars and conservative partisans, who quite plausibly see the New Deal as the real watershed in the growth of executive power. Like Fatovic, Shane does not take a broader comparative perspective on matters of constitutional and institutional design. As a result, he does not consider the possibility that some of the pathologies that concern him were born and bred in the United States:

8. See Rossiter (2002), who described the growth of executive and administrative discretion in many developed liberal democracies as a result of the Great Depression and the two world wars. For a discussion of similar trends during the Cold War, see the neglected but insightful study by Rankin and Dallmayr (1964).

Madison's strict separation of powers, where three independent branches compete with one another in ways unfamiliar to parliamentary systems, encourages presidents to gain the institutional upper hand.⁹ To be sure, no direct line connects Madison and Bush. Yet the former's institutional ideas are by no means unrelated to recent pathologies.

Shane wants checks and balances that would again prevent executive overreaching, foster deliberation and input from a wide variety of voices and interests, and encourage interbranch consensus building and deliberate decision making. Their revitalization would, he believes, buttress a political and constitutional culture based on mutual respect and the accommodation of multiple interests and perspectives. Resting on "a complex network of competing but interdependent sources of authority," "Madisonian democracy for the twenty-first century," or, alternately, "pluralist" constitutionalism, promises an admittedly "messy" but ultimately superior version of democracy and the rule of law (2009, 180, 186).

To bring that change about, Shane provides a long list of potential reforms. Presidents should formally renounce the theory of the unitary executive, consult more closely with Congress, and allow for more open government. A more assertive Congress might update the War Powers Act, alter judicial nomination hearings so as to better integrate legal experts who can raise the level of debate, and institute a British-style "question time" where the executive is forced to respond to queries. Even more ambitiously, our corporate-dominated media should be overhauled, universal suffrage should be achieved by, for example, enfranchising former felons, and we need to do a much better job at guaranteeing competitive congressional districts. Internet and broadband should be made more accessible, and new face-to-face possibilities for democratic deliberation (e.g., a national "Deliberation Day," as endorsed by Bruce Ackerman [2010, 127–31]) should be initiated (2009, 186–209). Such changes would purportedly help produce a political and constitutional culture in which cooperation rather than confrontation would again be properly rewarded.

Many of Shane's proposed reforms seem sound enough. At the end of day, however, his list seems somewhat haphazard, in part because his overall argument suffers from some conceptual ambiguities. Shane implicitly combines what contemporary political and legal theorists typically describe as *deliberative democracy* with a pluralist-inflected appreciation for the virtues of diverse interests and views (and competing as well as overlapping vehicles for institutional representation). How this synthesis of deliberative and pluralist theory necessarily relates to Madisonianism—in Shane's account, at times little more than a synonym for checks and balances¹⁰—remains an open question. Like Fatovic, Shane sidesteps the less attractive features of both Madison's political thinking and the constitutional model he bequeathed to us. Madison, for example, sought to check political majoritarianism in ways that modern democrats (and contemporary

9. To be clear: Madison's model is *not* strict in the sense that he insisted that executive, judicial, and legislative power be located in altogether separate institutions. But it is "strict" from the perspective of comparative politics and political sociology: not only does it have an unusually powerful and relatively autonomous constitutional court, but the executive is independently selected (and now popularly elected) and in many crucial ways autonomous vis-à-vis the legislature.

10. This is potentially problematic because it precludes proper attention to the key question of how "checks and balances" operate in alternative systems (e.g., parliamentarism, "constrained parliamentarism" [see Section IV], or semipresidentialism).

defenders of a rejuvenated legislative branch) might not abide.¹¹ Because Shane's normative standpoint ultimately seems to rest on an eclectic mix of deliberative democracy, pluralism, and (potentially misplaced) nostalgia for Madison, his reform proposals do not resonate well. The idea of a national "Deliberation Day" may prove advantageous, for example, but does it really constitute a Madisonian device whereby one institution checks others? Whatever their other advantages, broader Internet and broadband access might simply exacerbate partisan and indeed extremist tendencies rather than counteract them.

Ironically, the improbability that the United States will advance even relatively modest reforms anytime soon suggests that it has in fact preserved one feature of the Madisonian separation of powers. As Shane notes, that model favored consensus building, caution, and gradual change, attributes that, he argues, we should try to restore (2009, 9). But Shane's own desire for far-reaching and decisive reform probably conflicts with this facet of the Madisonian legacy as well.

Given the severity of the diagnosed problems, can the prescribed reforms realistically counteract them? Broadband access, enfranchising former felons, and a congressional "question time" are worthwhile goals, but can they counteract authoritarian presidentialism? Why would any president in his or her right mind unilaterally roll back his or her prerogatives in light of our existing institutional setup? Revealingly, even President Obama has failed—despite his campaign promises—to revoke signing statements and far-reaching executive secrecy, or to close Gitmo. What might lead Congress, for that matter, to decide that it can do a better job dealing with any of a host of likely crises than the executive, to which it prefers to pass the buck? Shane's argument sometimes relies on the rather *un*-Madisonian expectation that institutional practice might be altered without outlining how checks and balances might force the desired changes.

III. FROM JAMES MADISON TO CARL SCHMITT

Eric Posner and Adrian Vermeule have little patience with Madisonian nostalgia. Nor do they close their eyes—even if they ultimately have too little to say about possible implications—to the possible flaws of US constitutional design: "the choice of a presidential system turns out to have been risky" (2010, 199–200). Their provocative *The Executive Unbound: After the Madisonian Republic* argues not only that conventional Madisonian checking of the executive by legal and institutional means has failed the United States, but that it would be naïve to try to restore it. Providing a wide-ranging account of the multiple political and social sources of modern executive-dominated government, they insist that attempts by Congress and the courts to constrain executive expansion have proven "largely hopeless" (2010, 60). When one takes a hard-headed empirical look, judicial and congressional oversight has failed and will continue to fail because of informational asymmetries as well as enormous collective action problems.

11. In a now-classic challenge to the usual tendency to eulogize Madison, Richard Matthews (1995) underscores many of the less attractive—at least from a modern democratic perspective—features of Madison's thought and legacy.

Even the Administrative Procedures Act (APA), perhaps the US system's most notable attempt to check the administrative state by legal means, turns out to be pockmarked by a vast collection of "black," or at least "gray," legal holes providing massive opportunities for highly discretionary executive action (2010, 89–107). Opportunities for executive discretion continue to multiply, in part because of incessant crises and emergencies that play into the executive's hand, but more generally because what they describe as "extremely rapid change in the policy environment" manifest in countless decision-making arenas, posing huge regulatory impediments to the promulgation of well-crafted statutes by deliberative legislatures as well to courts acting in an *ex post facto* fashion and thus only *after* the executive has taken the initiative (2010, 5).

From Posner and Vermeule's perspective, emergencies are merely "the limiting case" of an intensified rate of social change privileging an executive whose ability to "make the first move" and respond rapidly leaves institutional rivals in the dust. Even when Congress does manage to respond to constantly changing political and social challenges, its statutes risk undergoing rapid obsolescence: no wonder that so many of them take the form of vague and open-ended delegations. The fundamental dilemma is a misfit between the Madisonian model (which the authors too casually clump together with "liberal legalism") and a dynamic social and economic environment where people count on government to deal with a vast range of issues. Not surprisingly, they think it naïve to expect much from some new postnational version of "global liberal legalism": even when dressed up in pretty cosmopolitan garb, the traditional liberal hope that executive power might be meaningfully checked by legal and constitutional devices remains anachronistic (2010, 154–75; see also Posner 2009).

If Posner and Vermeule's ideas already seem rather extreme, they probably should. Discarding not simply the Madisonian separation of powers but "liberal legalism" altogether, they turn to Carl Schmitt, the one-time Nazi and consistently authoritarian German legal thinker, and a growing object of scholarly interest among political and legal scholars.¹² While many others turned to Schmitt in the aftermath of 9/11,¹³ Posner and Vermeule's is arguably the most ambitious attempt to date to integrate Schmittian insights into mainstream US legal studies. To the extent that they build on some of Schmitt's more perceptive diagnostic insights (e.g., the challenges posed by social dynamism to conventional modes of liberal law), this move seems harmless enough. To the extent that it leads them to reproduce some of Schmitt's own congenital weaknesses, it proves both normatively troubling and empirically problematic.

Like Schmitt, Posner and Vermeule posit that the modern administrative state—in conjunction with more-or-less constant crises covering a broad range of political and economic matters—jettisons the rule of law for a highly discretionary "rule of the exception." The system's dominant player is the executive, who functions as a mass-based plebiscitarian figure generally unchecked¹⁴ by conventional legal and constitutional instruments. Following Schmitt on this point as well, they picture traditional

12. The literature is vast and growing. But for surveys of Schmitt's legal thinking, see Caldwell (1997), Dyzenhaus (1997, 1998), and Scheuerman (1999). Although easily obscured by her complex exegesis, Honig (2009)—like Posner and Vermeule—offers a heavily Schmittian view of emergency politics as well.

13. For a survey, see Scheuerman (2006).

14. They offer a strong version of this thesis throughout their discussion, but in the conclusion, they oddly back off somewhat and concede that *some* legal checks might still be in operation (2010, 206).

liberal democracy as having been transformed into executive-centered plebiscitarianism, relying on ubiquitous legal and administrative discretion. While Schmitt thought that such a system would necessarily have to be authoritarian, they instead argue that it need not prove as deplorable as so-called liberal legalists might have predicted. Our discretionary plebiscitary administrative state turns out to be congruent with liberal and democratic political ideals like those infamously rejected by Schmitt, who sought a right-wing—and during the mid-1930s, Nazi—dictatorship.

So why do Posner and Vermeule think they can join analytic forces with Schmitt while avoiding his theory's unattractive political preferences? Even if liberal legalism fails to restrain the executive, important *political* checks on the executive operate efficaciously in systems like our own. In fact, they suggest that even though legal and constitutional restraints have evaporated, independent political mechanisms potentially restrain the executive today more effectively than in the past. Most important, executives need to have elite and popular support if they are to advance their policy preferences; in wealthy and educated countries, both elites and broader publics are well positioned to deny such support. No wonder that recent holders of the presidency can seem—depending on the circumstances—either astonishingly powerful or altogether impotent. In contrast, for Schmitt, *legal*—and what we might loosely describe as *political*—liberalism are necessarily two sides of the same coin: if you abandon core elements of the rule of law and separation of powers, you can forget about keeping robust legislatures, a freewheeling independent public opinion and civil society, or elections that really amount to very much, at least from an identifiably liberal democratic perspective.¹⁵ Schmitt provided many reasons for this view, but his underlying intuition was by no means a farfetched one: a political system dominated by an executive unchecked by legal and constitutional means is unlikely to take an identifiably liberal democratic form. Civil and political rights will be insecure; free elections will in reality be dominated by the executive, who is particularly well positioned to manipulate public opinion. Without liberal legalism, in short, you will end up with an authoritarian regime, even if it perhaps continues to rest on some sort of mass-based political support.

Importantly, Posner and Vermeule reject Schmitt's view of liberalism as an integrated whole, where political and legal elements are inextricably woven together. The good news they hope to share in their otherwise unabashedly disillusioning book is that the US system has done pretty well at achieving political controls on executive power. So the alarmism now found among some liberal legalists¹⁶ should be put to rest. We may not live in the best of all possible worlds, but the United States seems to be doing pretty well at preserving liberties and providing for economic well-being. Madisonian checks and balances as well as liberal legalism may be gone, but why worry?

Needless to say, the stakes are high, and they are made even higher by Posner and Vermeule's adamant rejection of the possibility that "tyrannophobia"—a term in part meant to capture the possibility that knee-jerk liberal antistatism makes Americans instinctively hostile to strong executives—plays a positive role in checking executive

15. The crucial texts here include *Crisis of Parliamentary Democracy*, trans. Ellen Kennedy (1985); *Constitutional Theory*, trans. Jeffrey Seitzer (2008); *Concept of the Political*, trans. George Schwab (1996).

16. Including both Peter Shane and Bruce Ackerman, two of their targets.

power (2010, 176–205). So they cannot fall back, for example, on the conventional view that liberal political or constitutional culture works decisively to circumvent the dangers of executive-centered government. After having bought into so much of Schmitt's account, they need to prove their competing thesis that executive power can be—and in fact is—restrained by nonlegal political mechanisms. Yet, in part because so much hangs on their argument, their exposition seems insufficient.

Posner and Vermeule rely on two main claims. First, even if the president constitutes the dominant actor in a legally unchecked administrative state, he or she has to gain elite and public support to get things done and stand for election. So how can political actors decide whether or not the executive is performing well? Posner and Vermeule tend to hang their hats on “executive signaling”: presidents can send signals to voters communicating that they are “well-motivated,” and that in fact many voters might make the same (or at least similar) decisions if they possessed the information the president typically has. By communicating in a certain way (e.g., by appointing members of the opposing party to his or her cabinet, promising to accept the recommendations of an independent commission, or by making decisions as transparent as possible), presidents can gain credibility, and voters might thereby come to acknowledge the plausibility—if not necessarily the substantive rightness—of what the executive is doing (2010, 137–53).

However, as Schmitt aptly grasped, even formally free elections potentially become charades when the executive effectively exercises legally unconstrained power (e.g., in Peronist Argentina, or Putin's Russia). Posner and Vermeule never really provide enough evidence for us to dismiss this possibility. Since the president in our system is only subject on one occasion to reelection, it is unclear how their proposals might meaningfully check the executive, particularly during a second term. The fact that executive signaling represents a form of *self-binding* hardly seems reassuring, either (2010, 135). Nor does the book's highlighting of the possible dangers of different forms of executive signaling (e.g., *too much* transparency, or an *excessive* subservience to independent agencies) help very much on this score (2010, 142–46). Why should we expect to get presidents who know how to engage in executive signaling in *just the right way*?

The familiar reason the executive needs elite and popular support, of course, is that it still relies on a popularly elected Congress and other institutional players to get things done: this is why describing such dependence as intrinsically political and “nonlegal” seems odd. For that matter, the relationship between what we traditionally have described as a normative theory of political legitimacy and executive signaling mechanisms—whereby the executive gains popular credibility—remains ambiguous. Is their theory of executive signaling and credibility meant to stand in for a normative theory of legitimacy? If so, one might worry. We can easily imagine an executive diligently doing many of the things prescribed here yet nonetheless pursuing policies deeply at odds with the common good, or at least with what a democratic community under more ideal conditions might determine to be in its best interests. Depending on one's normative preferences, some of the examples provided of executive signaling (e.g., FDR and Obama naming Republicans to their cabinets) might legitimately be taken as evidence for presidential Machiavellianism, rather than as solid proof that the presidents in question were well-motivated and thereby somehow politically acceptable.

Presidential “signaling” seems like a pale replacement for liberal legalism and the separation of powers.

Second, Posner and Vermeule depend on an updated variant of 1960s modernization theory to help quell any anxieties we might be feeling about the purported destruction of liberal legalism. When societies reach certain levels of wealth and education, and when inequality remains limited, they will generally be liberal and democratic because then there are enough informed, literate, and prosperous people able to look out effectively for their rights and prevent tyranny. And since the administrative state contributes to both wealth and high levels of education, despite its legal demerits, it generates new political restraints on executive power. Notwithstanding its inefficiencies, the administrative state ultimately produces its own checking mechanisms able to do the job liberal legalism no longer can (2010, 200–02).

Unfortunately, this hypothesis also seems discouragingly thin. Posner and Vermeule have very little to say systematically about how demographics *concretely* operate in *political* terms to check executive power. They promise an account of political restraints on the executive, but offer little more than a brief summary of recent social science literature suggesting a strong correlation between liberal democracy, on the one hand, and wealth and education, on the other. Even if they are right to focus on social and demographic supports for democracy, how precisely do such factors become translated into political restraints, and what might be done to make sure that they do so effectively? How do they provide stand-ins for the myriad indispensable functions performed historically by liberal legalism and the separation of powers? Can we be sure that no “liberal legalist” devices play at least some role in helping them do so? Executives need the support—or at least the compliance—of competing institutions like Congress and the Supreme Court because such bodies possess important legal and constitutional powers. Elections, of course, presuppose a constitutionally-based system of suffrage along with many “liberal legalist” protections for the vote. One might also raise familiar reservations about this version of modernization theory: we can easily identify undemocratic countries with relatively high per-capita incomes (e.g., Singapore), as well as poor countries that do well in terms of democracy (e.g., India, and, perhaps, South Africa, Peru, and Ecuador). The book also asserts—but never really demonstrates or explains—that the administrative state contributes to wealth and high levels of education. Yet many poor and relatively uneducated countries lack basic liberal and democratic liberties while having extensive administrative apparatuses.

Posner and Vermeule depend heavily on social scientific findings whose causal significance for the political system remains ambiguous at best. Even though they worry about rising inequality in the United States, they provide an otherwise benign portrayal of the US polity, where well-educated and prosperous political actors—despite the lack of functioning legal and constitutional checks—supposedly restrain a powerful executive. Unlike Fatovic and Shane, they never succumb to “blind worship” of our constitutional system and its “heroic founding fathers.” Yet they similarly seem hesitant to consider the possibility that the United States might need to consider undergoing extensive reforms inspired by other and arguably more vibrant liberal democracies. By any account, their implicit normative democratic theory is a modest one, as they repeatedly underscore the institutional disadvantages of popular institutions like Congress. To their credit, they rely on a massive body of social science research; nonetheless,

they ignore an equally massive body of empirical research that challenges their normative inclinations. Not simply James Madison and liberal legalism, but also a democratic theory in which significant popular participation joins arms with powerful legislatures, tend to disappear from their analysis. By the end of the day, their book inadvertently corroborates Schmitt's original thesis: without liberal legalism and the rule of law, liberalism's distinctly "political" features cannot flourish.

Posner and Vermeule's fundamental problem is that they have implicitly accepted too many idiosyncratic Schmittian ideas. Like Schmitt, they oddly and sometimes dramatically juxtapose "liberal legalism" and "politics" (1996). Thus, after showing that liberal legalism cannot restrain the administrative state, they are left with the idiosyncratic task of trying to prove that "politics" (conceived here as fundamentally distinct from liberal legalism) can do the job, while overlooking the "legal" underpinnings (e.g., Congress's constitutional powers) of the executive's dependence on public as well as elite opinion. Even the relatively limited array of political mechanisms they highlight relies on "legal" devices. In part what arguably separates US-style elections from those found in authoritarian and semiauthoritarian regimes, for example, is a rich body of constitutional jurisprudence requiring that certain basic norms and rules be properly respected during elections. Although Posner and Vermeule are surely right to note that many traditional features of liberal legalism have undergone decay, political mechanisms that have stepped into the gap probably fall in a gray zone between what we might describe as "pure partisan politics" and "perfect formal legality." But they are by no means disconnected altogether from liberal legalism. Moreover, if we decline to endorse their overstated juxtaposition of "legalism" and "politics," things do not look quite as catastrophic for the rule of law and separation of powers. When Congress, for example, refuses to go along with the president's call to increase the debt ceiling, not just "politics" but also "liberal legalism" is still at work. The president's plebiscitarian appeal to the general populace can be effectively countered by a politically influential group within the House of Representatives that knows how to use familiar constitutional devices to check executive power. In the Senate, the filibuster rule—a problematic offshoot of liberal legalism, to be sure, but a component of it nonetheless—allows a minority of Senators to do the same.

Posner and Vermeule are right to argue that social dynamism potentially overloads conventional liberal democratic mechanisms and dramatically augments executive discretion. But they then follow Schmitt in generally presupposing, rather than demonstrating, that the executive is in fact best suited to deal with the imperatives of a fast-paced society. Why accept the conventional view of the executive as an expeditious institutional actor? What we *do* know is that the executive is a vast and sprawling institutional complex; it is by no means self-evidently temporally efficient (Scheuerman 2004). To be sure, the "executive's proclivity to *argue* that it possesses unique . . . capacity for action" many times leads other institutions to defer to it (2010, 110, emphasis added). But perhaps they should refuse to do so. The traditional normative vision of the executive as a unitary and thus temporally efficient entity may or may not have very much to do with reality; this is an empirical question. It may be true that the executive is "structured in a far more hierarchical fashion" than its rivals (2010, 44), but to assume that this necessarily demonstrates its comparative advantages will surprise anyone who has sought a prompt decision from a large hierarchical organization.

The danger at hand is that unexamined assumptions about executive power might lead us to preclude the possibility of new decision-making mechanisms and devices, potentially quite different from those found in the present administrative state, which conceivably could do justice both to the imperatives of social dynamism and so-called liberal legalism. Like Schmitt, Posner and Vermeule do not take seriously the possibility of reconstructing—rather than merely deconstructing—liberal legalism.

IV. REFORMISM'S LIMITS

Bruce Ackerman, one of our country's most observant analysts of its clunky constitutional machinery, is similarly impatient with the "comforting notion that our heroic ancestors" created an ideal constitutional and political system (2010, 10). He even agrees that the US model increasingly seems to overlap with Schmitt's dreary vision of executive-centered plebiscitarianism motored by endless crises and emergencies (2010, 82). In sharp contrast to Posner and Vermeule, however, he not only worries deeply about this trend, but he also discards the unrealistic possibility that it might be successfully countered without recourse to legal and constitutional devices. Although Madison's original tripartite separation of powers is ill-adjusted to the realities of the modern administrative state, we need to reinvigorate both liberal legalism and checks and balances. Unless we can succeed in doing so, US citizens are likely to experience a "quantum leap in the presidency's destructive capacities" in the new century (2010, 119).

Despite its alarmist tenor, for which he has been—in my view—unfairly criticized,¹⁷ Ackerman's position is grounded in a blunt acknowledgment of the comparative disadvantages of the US constitutional system. More clearly than any of the other authors discussed in this article, he breaks cleanly with the intellectual and constitutional provincialism that continues to plague so much legal and political science research on the United States. In part because as "late developers" they learned from institutional mistakes in the United States and elsewhere, more recently designed liberal democracies often do a better job than our Model T version at guaranteeing both policy effectiveness and the rule of law (2010, 120–22). Following the path-breaking work of his colleague Juan Linz, Ackerman offers a critical assessment of our presidential version of liberal democracy, where an independently elected executive regularly finds itself facing off against a potentially obstructionist Congress, which very well may seek to bury "one major presidential initiative after another" (2010, 5; see also Linz 1994). In the context of either real or imagined crises, executives facing strict temporal restraints (i.e., an upcoming election), while claiming to be the people's best protector against so-called special interests, will typically face widespread calls for swift (as well as legally dubious) action. "Crisis talk," in part endogenously generated by a flawed

17. Posner (2010, 33–35), for example, implies that Ackerman's argument borders on the paranoid. However, his own diagnosis coalesces in many ways with Ackerman's. The difference, as noted, is that Posner thinks that political checks on the executive have supplanted legal and constitutional restraints. If one is skeptical of this claim, as I think we should be, Posner needs to endorse at least some of Ackerman's alleged paranoia.

political system prone to gridlock rather than effective policy making, “prepares the ground for a grudging acceptance of presidential unilateralism” (2010, 6). Executives everywhere have much to gain from crisis scenarios. Yet incentives for declaring and perpetuating emergencies may be especially pronounced in our presidential system. The combination of temporal rigidity (i.e., fixed elections and terms of office) and “dual democratic legitimacy” (with both Congress and the president claiming to speak for “we the people”) poses severe challenges to law-based government (Linz 1994).

Criticizing US scholarship for remaining imprisoned in the anachronistic binary contrast of “US presidentialism vs. Westminster parliamentarism,” Ackerman recommends that we pay closer attention to recent innovations achieved by what he describes as “constrained parliamentarism,” basically a modified parliamentary system that circumvents the worst design mistakes of *both* Westminster parliamentarism *and* US presidentialism. As he has argued previously in a lengthy *Harvard Law Review* article, constrained parliamentarism—as found, for example, in recent democracies like Germany and Spain—locates law making in a Westminster-style popular assembly. But in contrast to the UK model, “legislative output is constrained by a higher lawmaking process” (2000, 666). The German Federal Republic, for example, rests on a written constitution (e.g., the Basic Law) and has a powerful constitutional court. In Ackerman’s view, constrained parliamentarism lacks many of the institutional components driving the growth of executive-dominated emergency government. Not surprisingly, he posits, it suffers to a reduced degree from many of the institutional pathologies plaguing US-style presidentialism.

Ackerman argues that, in contrast, US-style presidential models have regularly collapsed elsewhere (e.g., in Latin and South American countries, where US-style presidentialism has been widely imitated [Linz and Valenzuela 1994]), devolving on occasion into unabated authoritarianism (2000, 646). Ackerman now seems genuinely concerned that a similar fate might soon befall its original version. Even if his most recent book repeats some earlier worries, he has now identified additional perils that he thinks deserve immediate attention. Not surprisingly, perhaps, his anxiety level has noticeably increased. Even Schmitt’s unattractive vision of presidential authoritarianism appears “a little old-fashioned,” given some ominous recent trends (2010, 82). To an extent unfathomable in Schmitt’s day, the executive can exploit quasi-scientific polling data in order to gauge the public pulse. Presidents now employ a small but growing army of media gurus and consultants who allow them to craft their messages in astonishingly well-skilled—and potentially manipulative—ways. Especially during crisis moments, an overheated political environment can quickly play into the hands of a “White House propaganda machine generating a stream of sound bites” (2010, 33). Pundits and opinion makers already tend to blur the crucial divide between polling “numbers” and actual votes, with polls in both elite and popular consciousness tending not only to supplement but increasingly displace election results.¹⁸ The decline of the print media and serious journalism—about which Ackerman is understandably distressed—means that even the most fantastic views are taken seriously. Thus far, the Internet has failed to pick up the slack; it tends to polarize public opinion. Meanwhile, our primary system

18. As perhaps corroborated by Posner and Vermeule’s focus on executive signaling as a device for gaining the support of an (amorphously conceived) “public opinion.”

favors candidates who successfully appeal to an energized partisan base, meaning that those best able to exploit public opinion polling and the mass media, but out of sync with the median voter, generally gain the party nomination. Linz earlier pointed out that presidentialism favors political outsiders; Ackerman worries that in our emerging presidential model, the outsiders will tend to be extremists. Polling and media-savvy, charismatic, and relatively extreme figures will colonize the White House.

In addition, the president's control over the massive administrative apparatus provides the executive with a daunting array of institutional weapons, while the Office of Legal Counsel (OLC) and Office of Counsel to the President offer hyperpoliticized sites from which distinctly executive-centered legal and constitutional views now are rapidly disseminated. Ackerman raises some tough questions for those who deem the OLC and related executive organs fundamentally sound institutions that somehow went haywire under David Addington and John Yoo. In his view, their excesses represent a logical result of basic structural trends currently transforming both the executive and political system as whole. OLC's partisan and sometimes quasi-authoritarian legal pronouncements are now being eagerly studied by law students and cited by federal courts (2010, 93). Notwithstanding an admirable tradition of executive deference to the Supreme Court, presidents are better positioned than ever to claim higher political legitimacy and neutralize political rivals. Backed by eager partisan followers, adept at the media game, and well armed with clever legal arguments constructed by some of the best lawyers in the country, prospective presidents may conceivably stop deferring to the Court (2010, 89).

Ackerman's most unsettling amendment to his previous views is probably his discussion of the increasingly politicized character of the military—an administrative realm, by the way, ignored by other writers here, despite its huge role in modern US politics. Here again, the basic enigma is that the traditional eighteenth-century tripartite separation of powers meshes poorly with twenty-first-century trends: powerful military leaders can now regularly play different branches of government against one another in ways that undermine meaningful civilian oversight. Top officers possess far-reaching opportunities “to become an independent political force—allowing them to tip the balance of political support in one direction, then another,” as the competing branches struggle for power (2010, 49). For Ackerman, the emergence of nationally prominent and media-savvy figures such as Colin Powell and David Petraeus, who at crucial junctures have communicated controversial policy positions to a broader public,¹⁹ suggests that this long-standing structural flaw has recently gotten worse. The Goldwater-Nichols Act of 1996, for example, transformed the chair of the Joint Chiefs of Staff from a mediator for the competing services into the military's principal—and hugely influential—spokesperson within the National Security Council (2010, 50). Not only does the military constitute a hugely significant segment of the administrative machinery, but it is now embodied—both in government and the public eye—in a single leader whose views carry tremendous weight. The fact that opinion surveys show

19. Powell, for example, authored *New York Times* op-eds lecturing presidential candidate Bill Clinton on the dangers of intervention in Bosnia. Amid Bush's 2004 reelection campaign, Petraeus authored a *Washington Post* op-ed endorsing the invasion of Iraq; at other politically opportune junctures, he endorsed the “surge” military strategy as necessary to victory in the “war on terror” (2010, 51–53).

that the officer corps is increasingly conservative in its partisan orientation, Ackerman notes, only adds to the dangers. Americans need not fear an imminent military putsch, along the lines that destroyed other presidential regimes elsewhere. Nonetheless, we would do well not to be “lulled into a false sense of security” (2010, 87).

Having painted a foreboding portrait of institutional trends, Ackerman points to paths we might take to ward off the worst. In light of the obvious seriousness of the illness he has diagnosed, however, his antidotes tend to disappoint: he proposes that we treat cancer with some useful but limited home remedies. Like Shane, Ackerman wants to improve popular deliberation by reforming the mass media and institutionalizing “Deliberation Day” (2010, 125–40). Yet how such otherwise potentially appealing initiatives might counteract the symbiotic relationship between presidentialism and crisis government remains ambiguous. A modernized electoral college, for example, might simply engender executives better positioned to claim to stand in for “we the people” than their historical predecessors. Given Ackerman’s own worries about plebiscitarianism, this reform might compound rather than alleviate our problems.

More innovatively, Ackerman endorses the idea of a quasi-judicial check *within* the executive branch, a “Supreme Executive Tribunal” given the task of expeditiously determining the legality of proposed executive action, whose members would be appointed to staggered terms and subject to Senate confirmation. Forced to gain a seal of approval from jurists relatively insulated from sitting presidents, the executive tribunal would act more quickly than an ordinary court and thereby help put a “brake on the presidential dynamic before it can gather steam” (2010, 143). Before the president could take the first political move and potentially alter the playing field, he or she might first have to clear the move with a body of legal experts, a requirement that presumably over time would work to undergird the executive branch’s commitment to legality. The proposed tribunal could allow the president and Congress to resolve many of their standoffs more expeditiously than is typical today (2010, 146). Congressional representatives, for example, might rely on the tribunal to challenge executive signing statements.

Existing exemptions for a significant number of major executive-level actors (e.g., the president’s National Security Advisor) from Senate confirmation also need to be abandoned, while the military should promulgate a new Canon of Military Ethics, aimed at clarifying what civilian control means in contemporary real-life settings, in order to counteract its ongoing politicization. Goldwater-Nichols could be revised so as better to guarantee the subordination of military leaders to the Secretary of Defense (2010, 153–65). Ackerman also repeats his previous calls for creating an explicit legal framework for executive emergency action: Congress could temporarily grant the president broad discretionary emergency powers while maintaining effective authority to revoke them if the executive proved unable to gain ever more substantial support from the legislature (2010, 165–70; see also Ackerman 2006).

Each of these suggestions demands more careful scrutiny than possible here. Nonetheless, even if many of them seem potentially useful, room for skepticism remains. Why, for example, would the proposed executive tribunal not become yet another site for potentially explosive standoffs between presidents and Congress? Might not high-level political conflicts end up simply taking the forms of destructive (and misleadingly legalistic) duels? To the extent that one of the tribunal’s goals is to decelerate executive decision making, its creation would perhaps leave our already sluggish and slow-moving

political system even less able than at the present to deal with fast-paced challenges. Faced with time constraints and the need to gain popular support, executives might then feel even *more* pressed than at present to circumvent legality. As Ackerman knows, even as it presently operates, the Senate confirmation process is a mess. His proposal to extend its scope might simply end up reproducing at least some familiar problems. Last but not least, given the perils he so alarmingly describes, his proposed military reforms seem unsatisfying. Why not instead simply cut our bloated military apparatus and abandon US imperial pretensions?

The obvious Achilles heel is that none of the proposals really deals head-on with what Ackerman himself conceives as the fundamental root of executive-centered government: an independently elected president strictly separated from legislative bodies with which he periodically clashes in potentially destructive ways. Despite Ackerman's ambition, his proposals do not provide structural reform: he concludes that US-based reformers should "take the independently elected presidency as a fixture" (2010, 124). Thus, presidential government is here to stay; reformers can also forget about significantly altering our flawed system of presidential primaries, activist government, and powerful military that intervenes frequently abroad (2010, 124).

Given contemporary political developments, one can certainly appreciate why Ackerman is skeptical that the US system might finally be ripe for a productive institutional overhaul. Nonetheless, this just makes an already rather bleak book look even bleaker. His book's title, *The Decline and Fall of the American Republic*, is out of step with the somewhat upbeat reformist proposals detailed in its final chapters. Regretfully, the title better captures his core message.

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Only Ackerman's ultimately disturbing book both adeptly rejects the tendency among recent students of executive power to revert to constitutional nostalgia while forthrightly identifying the very real dangers posed by recent institutional trends. In an age of permanent or at least seemingly endless emergencies, where the very attempt to cleanly distinguish dire crises from "normal" political and social challenges becomes exceedingly difficult, the executive threatens to become an even more predominant—and potentially lawless—institutional player. Unfortunately, US-style presidential democracy may be particularly vulnerable to this trend. Ackerman proves more successful than the other authors discussed here because he is best attuned to a rich body of comparative constitutional and political science scholarship that has raised legitimate doubts about the alleged virtues of US-style liberal democracy. Not surprisingly, some of his own reform ideas—for example, his proposed system of emergency law making—draw heavily on foreign examples, including Canada and new democracies such as South Africa. He convincingly argues that we might at least ameliorate the widespread tendency among presidents to manipulate crises for narrow partisan reasons, for example, by relying on the clever idea of a supermajoritarian escalator, which would require every legislative renewal of executive emergency authority to rest on ever more numerous supermajorities (2006). Ackerman is right to suggest that the United States needs to look abroad in order to improve our rather deficient system of emergency rule (Scheuerman 2006, 2008). Our system is broken; it is time to see what can be learned from others.

Ackerman's latest book's overly cautious reformism thus seems especially peculiar in light of his own powerful and indeed enthusiastic defense of constrained parliamentarism, which he quite plausibly describes as potentially offering a superior approach to emergency government. The key point is not that we can be absolutely sure that the "grass is greener" in new democracies such as postwar Germany or post-Franco Spain; existing empirical evidence offers, frankly, a mixed picture. Contemporary Germany, for example, has certainly experienced its own fair share of emergency executive excesses (Frankenberg 2010). Scholars have criticized not only the empirical thesis that presidentialism and a strict separation of powers can help explain the substantial growth of executive discretion (Carolan 2009; Gross and Ni Aolain 2006), but also more far-reaching assertions about their alleged structural disadvantages (Cheibub 2006). Still others argue that parliamentary regimes even of the "old type" (i.e., the UK Westminster model) have done relatively well in maintaining the rule of law during serious crises (Ewing and Gearty 2000; Bellamy 2007, 249–53). Unfortunately, we still lack well-conceived empirical studies comparing constrained parliamentarism with US-style presidentialism. Too much existing scholarship focuses on single countries, or relies on "foreign" cases but only in a highly selective and anecdotal fashion. Until we have more properly designed comparative studies, however, it seems inaccurate to assume *a priori* that core institutional features of US presidential democracy are well equipped to tackle the many challenges at hand. As I have tried to argue here, a great deal of initial evidence suggests that this simply is not the case.

Admittedly, *every* variety of liberal democracy confronts structural tendencies favoring the augmentation of executive power: many of the social and economic roots (e.g., social acceleration) of executive-centered crisis government represent more-or-less universal phenomena, likely to rattle even well-designed constitutional systems. One can also easily imagine that in decades to come, extreme "natural" catastrophes—increasingly misnamed, because of their links to human-based climate change—justifying declarations of martial law or states of emergency will proliferate, providing novel possibilities for executives to expand their authority.²⁰ So it would be naïve to expect *any* easy constitutional or political-institutional fix. However, this sobering reality should not lead us to abandon creative institutional thinking. On the contrary, it arguably requires of us that we try to come up with new institutional models, distinct *both* from existing US-style presidentialism *and* parliamentarism, constrained or otherwise.

Despite his undeniable advances on this score, Ackerman still seems overly wedded to "American exceptionalism." He apparently sees it as inconceivable that US citizens might be able to change their political (and social) system in far-reaching ways. Ours, it seems, is a deeply conservative system immune to precisely the sort of far-reaching modernization it needs (and that other democracies have presumably achieved). For reasons he never sufficiently explains, even some relatively recent institutional changes (e.g., what Eisenhower famously described as the "military-industrial complex," or McGovernite-era reforms of the presidential primary system) now allegedly constitute unchangeable institutional realities. Anyone who wants to put the matter of presidentialism versus (constrained) parliamentarism on the table, or turn

20. In other words, Hurricane Katrina may provide a glimpse of some real challenges facing liberal democracies in future decades.

to contemporary Europe to undertake radical reform, is abandoning the path of realistic and “pragmatic” reform.

Throughout this article I have criticized the commonplace tendency among political and legal scholars to bow before the purported wisdom of our original constitutional framers. On this occasion, however, some constitutional nostalgia might be appropriate. It was James Madison, of course, who famously argued that our then-novel republican experiment was based on the simple idea that government should be based on free choice and reasonable deliberation. Even if we would do well to discard many other ideas they bequeathed to us, it would be unfortunate if we abandoned *that* feature of the framers’ legacy.

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